

Brackenridge Civil Group Inc

www.brackenridgecivil.com

April 17, 2006

Mr. Mark Green, Chief Financial Officer, Franklin-Snyder

Dear Mr. Green:

This letter confirms that this office will design the relocation of the utilities in conflict with your planned improvements, and it sets out the terms of that work. It covers the scope, the people who will do it, the fee, and the conditions under which we will proceed. When you have read it and returned a signed copy to this office, it will stand as our agreement to perform the work for Franklin-Snyder.

The Work to Be Performed

Your development cannot proceed until the utilities that cross the site are moved clear of the proposed building, grading, and pavement. We will design that relocation. Our work begins with the record drawings, the survey, and field locates that fix where the existing water main, sanitary sewer, and overhead electric and telephone lines actually lie. We will confirm each conflict against your site plan. We will then design a new alignment and profile for each utility that must move, clear of the improvements and clear of one another, and we will prepare the tie-in details where the relocated lines rejoin the existing system.

The design will meet the standard of each utility that owns the line. The water main is operated by the regional water authority, and we will design its relocation to that authority's specifications and carry the coordination with its staff. The electric and telephone relocations will be designed to the serving companies' requirements. We will prepare the relocation plan and profile sheets under a sealed cover sheet, the easement exhibits for the new alignments, the estimated quantities, and an opinion of probable construction cost. Our fee includes one round of revisions to answer the written comments of the reviewing parties.

Reliance on Furnished Information

Our design will rely on the record drawings, the survey, and the site plan furnished to us. We will check that information for consistency and confirm the critical utilities by field locate, but we are entitled to rely on what is furnished and are not responsible for errors it contains. If the site plan or the survey changes after we begin, the

change may affect the design, the schedule, and the fee. We will tell you the effect before we act on it.

Who Will Do the Work

The work will be staffed from this office. Linda George, Project Engineer, will lead the design and carry the day-to-day coordination with the utility owners and with the regional water authority. Jason Jordan, Design Technician, will prepare the plan and profile sheets and the relocation details to her direction. Mark Todd, Principal Engineer, will review every sheet and seal the completed set, and correspondence to the regional water authority or to any other public body will be issued over his signature. Questions on the progress of the work should be directed to Linda George. Questions on scope, fee, or the terms of this agreement should be directed to Mark Todd.

Fee and Commencement

Our fee for the work described above is a fixed sum of \$72,000. That sum covers the design, the plan and profile sheets, the easement exhibits, the quantities and cost opinion, and the single round of revisions noted above. We will begin the work on April 27, 2006. Work outside this scope, including further revision rounds, redesign to follow a change in your site plan, or the design of utilities not now in conflict, will be undertaken only on your written authorization, and we will quote its cost before we proceed.

Invoicing and Payment

We will invoice monthly for the work completed in the period. Each invoice is due within thirty days of its date. Reimbursable costs, such as reproduction, agency fees, and delivery, are billed at cost and are additional to the fee. If an invoice stands unpaid sixty days after its date, we may suspend the work until it is paid, and we will give written notice before we do. A suspension for non-payment extends our schedule by its length.

Duration and Termination

This agreement takes effect on the day the work begins and runs until the relocation plans are complete and the reviewing parties' first comments have been answered. Either of us may end it on ten days' written notice to the other. On termination by you, you will pay for the services performed and the costs incurred through the date of termination. The drawings, profiles, and calculations we prepare are our instruments of service and remain our property; on payment in full you may use them for this project.

Confidentiality

We will hold in confidence the site information, plans, and financial figures you give us, and we will use them only for this work. We may disclose what a utility owner or a public body reasonably requires for its review, and what the law compels. This obligation outlasts the completion or termination of the work.

Limit of Our Liability

We will perform this work with the care and skill ordinarily used by civil engineers practicing in this locality at this time. We make no other warranty, express or implied. Our total liability to Franklin-Snyder for any claim arising out of or related to this work, whether in contract or in tort, is limited to the amount of the fee paid under this agreement. We are not responsible for the means, methods, or safety of construction, nor for the acts of contractors or others not under our direct control.

Governing Law

This agreement is governed by the laws of the state in which the site lies. Any dispute under it that we cannot settle between us will be brought in the courts of that state.

Schedule

The work runs about three months from the start. We can hold that schedule so long as the record information reaches us when it is needed and the utility owners respond within their usual time. Delay in either is outside our control. Should one threaten the completion of the work, we will tell you promptly and propose how to recover the time.

Acceptance

If these terms are acceptable, please sign both copies of this letter and return one to this office. On receipt we will schedule the work to begin on the date stated above. If any term needs discussion, telephone before you sign and we will settle it first.

Sincerely,

Mark Todd

Principal Engineer

Date: April 17, 2006

Mark Green

Chief Financial Officer, Franklin-Snyder

Date: April 17, 2006